

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX----- X
ALEXCY DE LOS ANGELES,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD POLICE
DETECTIVE SHARON HARVEY, Shield No. 2735,
NYPD SERGEANT TIMOTHY MARX, Shield No. 4847,
NYPD POLICE OFFICER CHRISTOPHER BOCCOMO,
Shield No. 18951, and NYPD POLICE OFFICERS JOHN
DOES NUMBERS ONE THROUGH TEN,Defendants.
----- X**SUMMONS**

Index No.:

The Basis of Venue is:
Location of IncidentPlaintiff designates Bronx
County as the place of trial.**To the above-named Defendants:**

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
February 6, 2023

Yours, etc



Omar Russo, Esq.

Shulman-Hill, PLLC

Attorneys for Plaintiff

1 State Street Plaza

15th Floor

New York, New York 10004

(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD DETECTIVE SHARON HARVEY, Shield No. 2735 (retired); One Police Plaza,
New York, NY 10038

NYPD SERGEANT TIMOTHY MARX, Shield No. 4847; 34th Precinct, 4295 Broadway,
New York, New York 10033

NYPD POLICE OFFICER CHRISTOPHER BACCOMO, Shield No. 18951; One Police
Plaza, New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

ALEXCY DE LOS ANGELES,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD POLICE
DETECTIVE SHARON HARVEY, Shield No. 2735,
NYPD SERGEANT TIMOTHY MARX, Shield No. 4847,
NYPD POLICE OFFICER CHRISTOPHER BOCCOMO,
Shield No. 18951, and NYPD POLICE OFFICERS JOHN
DOES NUMBERS ONE THROUGH TEN,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff ALEXCY DE LOS ANGELES, by his attorneys, Shulman-Hill, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On October 22, 2017, at approximately 2:00 p.m., Plaintiff Alexcy De Los Angeles, while lawfully in the vicinity of 3908 Bronx Boulevard, County of Bronx, New York, was subject to an unlawful arrest, detention, and excessive use of force by defendant Police Officers. In addition, Plaintiff was subjected to approximately five (5) days in unlawful custody at the NYPD 34th Precinct, 43rd Precinct, 45th Precinct, Bronx County Central Bookings, and Rikers Island Correctional Facility. All charges against the plaintiff were dismissed and sealed on March 15, 2022. Plaintiff was deprived of his rights under the City and State of New York and his constitutional, common law and statutory rights when the individual defendants unlawfully stopped, detained, subjected to excessive force, and passed along false accusations to prosecuting attorneys against the Plaintiff, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Alexcy De Los Angeles is a resident of the state of New York.

3. NYPD Police Detective Sharon Harvey, Shield No. 2735, was at all times relevant herein an officer, employee, and agent of the New York City Police Department; she has since retired.

4. NYPD Police Detective Sharon Harvey, Shield No. 2735, is being sued in her individual and official capacity.

5. NYPD Police Detective Sharon Harvey, Shield No. 2735, was at all times relevant herein assigned to the NYPD 45th Precinct.

6. NYPD Sergeant Timothy Marx, Shield No. 4847, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

7. NYPD Sergeant Timothy Marx, Shield No. 4847, is being sued in his individual and official capacity.

8. NYPD Sergeant Timothy Marx, Shield No. 4847, was at all times relevant herein assigned to the NYPD 45th Precinct.

9. NYPD Police Officer Christopher Bacomo, Shield No. 18951, was at all times relevant herein an officer with the New York City Police Department.

10. NYPD Police Officer Christopher Bacomo, Shield No. 18951, is being sued in his individual and official capacity.

11. NYPD Police Officer Christopher Bacomo, Shield No. 18951, was at all times relevant herein assigned to the Critical Response Command.

12. As the Critical Response Command is an assignment maintaining a covert location, NYPD Police Officer Christopher Bacomo, Shield No. 18951, therefore accepts service by the NYPD via One Police Plaza.

13. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

14. Police Officers John Does #1-10 are being sued in their individual and official capacities.

15. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees

of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

16. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

17. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.

18. In accordance with New York State law and General Municipal Law Section 50, Plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on July 27, 2022.

19. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

20. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

21. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

22. On October 22, 2017, at approximately 2:00 p.m., Plaintiff was lawfully present at 3908 Bronx Boulevard in the Bronx, New York, when the defendant Police Officers unlawfully arrested Plaintiff without probable cause or legal justification.

23. At the time of the incident, the plaintiff was employed as a luxury car driver for New York's Finest luxury car service.

24. Plaintiff had pulled over his vehicle to drop off a client at their destination and had begun to pull back out into traffic, when he observed a police vehicle behind him turn on their lights and sirens.

25. Plaintiff pulled over the vehicle again and two (2) defendant officers approached his vehicle.

26. Defendant officers asked for the plaintiff's license and registration, which the plaintiff provided.

27. Plaintiff's license and registration were both valid, and Plaintiff had not committed any VTL infractions or crimes.

28. Defendant Officers asked Plaintiff to step out of the vehicle, and Plaintiff complied.

29. It was at this point that the defendant officers began to arrest the plaintiff, restraining him with metal handcuffs and subjecting him to unlawful pat-down search.

30. Plaintiff gave consent for his vehicle to be searched.

31. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the defendant officers have an objective basis to accuse Plaintiff of committing a crime or violating the law in any way.

32. At no point did Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

33. Plaintiff did not resist arrest.

34. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by the defendant officers without legal justification or probable cause, placed in the back of an NYPD vehicle, and transported to the 34th Precinct.

35. After some time in a holding cell at the 34th Precinct, two (2) NYPD detectives arrived and transported the plaintiff to the 43rd Precinct.

36. After he was unlawfully fingerprinted, photographed, and placed in a holding cell at the 43rd Precinct, the plaintiff was questioned by detectives about a murder from November of 2011, six years earlier.

37. After another several hours in a holding cell, the plaintiff was again picked up by detectives and transported to the 45th Precinct where he was taken to a small room and handcuffed to a pipe.

38. At the 45th Precinct, the defendant was shown an identification photo by another detective, who asked if he knew the man in the photo. The plaintiff stated that he had known the man through a mutual friend.

39. Plaintiff was then questioned by the Bronx County District Attorney, who told the plaintiff that his DNA had been found at the scene where the man in the photo had been murdered.

40. While Plaintiff was in custody, the defendant police officers provided the Bronx County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff committed a crime.

41. Specifically, the defendant police officers falsely stated to the Bronx County District Attorney's Office that Plaintiff was engaged in Kidnapping and Murder.

42. Based on the Defendant Officer's false allegations, the Judge remanded Plaintiff to Rikers Island Correctional Facility.

43. The Judge refused to set bail based on the false allegations, and Plaintiff was sent to VCBC, The Boat, at Rikers Island.

44. After five (5) days of unlawful custody, the plaintiff was released on his own recognizance when The People failed to secure an indictment against him.

45. On March 15, 2022, almost five (5) years after his initial arrest, the plaintiff was acquitted and all charges against him were dismissed and sealed in their entirety.

46. As a result of his arrest and the false charges made against him, the plaintiff missed myriad work opportunities from each of his two jobs; one as a luxury car service driver and one as a construction worker.

47. While Plaintiff had an open murder case, no one would hire him to work, thereby causing over five years of lost earnings.

48. The Defendant Detective's manufactured DNA evidence that had nothing to do with the case.

49. The murder took place in 2011, and the District Attorney's office refused to authorize an arrest due to the lack of probable cause connecting Plaintiff to the crime.

50. Nothing changed, and no new evidence was discovered from 2011 to 2017, nevertheless, Plaintiff was arrested in 2017, based on the manufactured DNA, and police and media pressure to close the investigation.

51. It took another five (5) years to bring the case to trial.

52. The jurors in the criminal trial acquitted Plaintiff of all charges in less than 20 minutes of deliberations, because of the lack of probable cause, and lack of evidence connecting Plaintiff to the crime.

53. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably arresting, confining, and using excessive force against Plaintiff.

54. The unlawful arrest, confinement, and use of excessive force by the individually named defendants caused Plaintiff to sustain psychological and emotional trauma.

FIRST CAUSE OF ACTION

Negligence

55. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

56. Defendants owed a duty of care to Plaintiff.

57. To the extent defendants claim that the injuries to Plaintiff by the defendant police officers were unintentionally caused and that the force used by the defendants against him was unintentional, then the defendants breached that duty of care by, among other things, seizing and tightly handcuffing him.

58. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

59. All of the foregoing occurred without any fault or provocation by Plaintiff.

60. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

61. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

62. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION

Unlawful Stop, Question, and Search

63. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

64. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

65. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

66. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

67. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

68. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights: Unlawful Seizure and Deprivation of Liberty

69. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

70. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

71. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional, and psychological injuries.

FOURTH CAUSE OF ACTION

False Imprisonment

72. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

73. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

74. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

75. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

76. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

77. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights: Excessive Force

78. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

79. The use of excessive force by defendants by, amongst other things, seizing and handcuffing the plaintiff, constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

80. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

81. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

82. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff.

83. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

84. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

85. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

86. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

87. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

88. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

89. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

90. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Failure to Intervene

91. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

92. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

93. Defendants failed to intervene to prevent the unlawful conduct described herein.

94. As a result of the foregoing, Plaintiff suffered serious, debilitating and permanent injury, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subject to other physical constraints.

95. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

96. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

97. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

98. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Violation of Fourth And Fourteenth Amendment Rights: Denial of Right to Fair Trial/Due Process

99. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

100. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

101. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

102. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

103. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

104. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

105. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

106. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

107. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: economic, emotional, and psychological injuries.

TENTH CAUSE OF ACTION

Malicious Prosecution

108. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth at length herein.

109. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

110. Defendants commenced and continued a criminal proceeding against Plaintiff.

111. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which he was prosecuted.

112. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

ELEVENTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

113. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

114. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of his person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

115. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered psychological, economic, and emotional injuries, as well as a deprivation of liberty.

116. As a result of the above tortious conduct, Plaintiff was caused to suffer psychological, economic, and emotional injuries, as well as a deprivation of liberty.

117. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

126. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff ALEXCY DE LOS ANGELES demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 801 *et seq.*.

Dated: New York, New York
February 6, 2023

By: 
Omar Russo, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
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New York, New York 10004
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To: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

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Plaza, New York, New York 10038

ATTORNEY'S VERIFICATION

OMAR RUSSO, an attorney duly admitted to practice before the Courts of the

State of New York, affirms the following to be true under the penalties of perjury:

I am an associate of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
February 6, 2023



OMAR RUSSO, ESQ.